

26STCP03052 26STCP03052

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-09-21

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Case Number: 26STCP03052 Hearing Date: September 21, 2026 Dept: 512

HEARING

DATE: Mon., September 21, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: JG

Wentworth Originations LLC v. Jane Doe PET. FILED: 08-10-26

CASE NUMBER: 26STCP03052

AM.

PET. FILED: 08-18-26

NOTICE:

OK

PROCEEDINGS: FIRST AMENDED PETITION FOR ORDER APPROVING TRANSFER OF
STRUCTURED SETTLEMENT PAYMENT RIGHTS PURSUANT TO CALIFORNIA INSURANCE CODE
SECTION 10134 ET SEQ.

MOVING PARTY: Petitioner J.G. Wentworth
Originations, LLC

RESP. PARTY: None

AMENDED

PETITION FOR ORDER APPROVING TRANSFER OF STRUCTURED SETTLEMENT PAYMENT RIGHTS

(Cal. Ins. Code, § 10134, et seq.)

TENTATIVE RULING:

Petitioner J.G.

Wentworth Originations, LLC's Amended Petition for Approval for Transfer of Payment Rights is CONTINUED to Wednesday, October 21, 2026 at 9:00 a.m. in Department 512 of the Stanley Mosk Courthouse.

At least 20 days

prior to the next scheduled hearing, Petitioner is to file and serve a second amended petition addressing the deficiencies noted herein.

Moving party is
ordered to give notice.

SERVICE:

[X] Proof of Service Timely
Filed (CRC, rule 3.1300) OK

[X] Correct Address (CCP §§
1013, 1013a) OK

[X] 16/21 Court Days Lapsed
(CCP §§ 12c, 1005(b)) OK

OPPOSITION: None
filed as of September 17, 2026 [] Late [X] None

REPLY: None
filed as of September 17, 2026 []
Late [X] None

ANALYSIS:

I.
Background

On August 10,
2026, Petitioner J.G. Wentworth Originations, LLC ("Petitioner") filed a
Verified Petition for Approval for Transfer of Payment Rights (the "Petition").
The Petition names the interested parties in this action as Jane Doe ("Payee"),

an adult, and County of Los Angeles. (Pet., pp. 1-2.)

On August 18,
2026, Petitioner filed proof of service of the Petition and notice of hearing
by mail on Payee and County of Los Angeles.

On August 28,
2026, Petitioner filed and served the instant Amended Petition that names the
interested parties in this action as Payee and County of Los Angeles. (Pet.,
pp. 1-2.)

On September 8,
2026, Petitioner filed and served amended exhibits A, B, and E to the Amended
Petition.

No Opposition to
the Amended Petition has been filed.

II. Procedural Issues

As an initial
matter, the Court addresses that, while the instant item set for hearing is a
petition, the item on calendar for the instant hearing date is labeled in the
Court's system as a "motion." Despite this misnomer, the Court finds that there
is neither a motion filed nor set for hearing in this matter, and thus in
substance it is the Petition/Amended Petition to be heard at the instant
hearing.

III. Legal Standard

"The California Legislature has
adopted the Structured Settlement Protection Act (SSPA) (§ 10134 et seq.) to
protect structured settlement payees from exploitation by factoring companies."
(RSL Funding, LLC v. Alford (2015) 239 Cal.App.4th 741, 745.)

"The court-approval process requires
the factoring company to file a petition in the county in which the transferor
resides for approval of the transfer, attaching copies of the petition, the

transfer agreement, the disclosure form, the annuity contract, any qualified assignment agreement and the structured settlement agreement, a list of the names and ages of the transferor's dependents, notice of the court hearing date, and notice of a right to respond." (321 Henderson Receivables Origination LLC v. Sioteco (2009) 173 Cal.App.4th 1059, 1066 [citing Ins. Code, §10139.5(c)].)

"The California act...governing transfers of structured settlement payment rights defines a "[s]tructured settlement agreement" [as] an arrangement for periodic payment of damages established by settlement or judgment in resolution of a tort claim in which the payment of the judgment or award is paid in whole, or in part, in periodic tax-free payments rather than a lump-sum payment.'" (Matthews v. Liberty Assignment Corp. (2016) 247 Cal.App.4th 71, 78.)

"Annuity issuers and structured settlement obligors are defined as 'interested parties' under the SSPA (§ 10134, subd. (g)), and as such, are entitled to notice of petitions to authorize transfer of payments under a structured settlement agreement." (RSL Funding, LLC, supra, 239 Cal.App.4th at p. 745.)

Insurance

Code §10137 provides: "A transfer of structured settlement payment rights is void unless a court reviews and approves the transfer and finds the following conditions are met: (a) [t]he transfer of the structured settlement payment rights is fair and reasonable and in the best interest of the payee, taking into account the welfare and support of his or her dependents [; and] (b) [t]he transfer complies with the requirements of this article, will not contravene other applicable law, and the court has reviewed and approved the transfer as provided in Section 10139.5." (Ins. Code, § 10137.) The transfer agreement is effective only upon approval in a final court order. (Ins. Code, § 10139.5(a).)

Insurance Code §10139.5(a)
requires the court to make the following findings:

The transfer is in the best
interest of the payee, taking into account the welfare and
support of the payee's dependents.

The payee has been advised
in writing by the transferee to seek independent professional
advice regarding the transfer and has either received that
advice or knowingly waived, in writing, the opportunity to receive the
advice.

The transferee
has complied with the notification requirements pursuant
to paragraph (2) of subdivision (f), the transferee has provided the
payee with a disclosure form that complies with Section 10136,
and the transfer agreement complies with Sections 10136 and
10138.

The transfer does not
contravene any applicable statute or the order of any court or other
government authority.

The payee understands the
terms of the transfer agreement, including the terms set forth
in the disclosure statement required by Section 10136.

The payee understands and
does not wish to exercise the payee's right to cancel the transfer
agreement.

(Ins. Code, § 10139.5(a).)

In addition, pursuant
to Insurance Code section 10139.5(c):

Every petition for approval of a
transfer of structured settlement payment rights, except as provided in
subdivision (d), shall include, to the extent known after the transferee has
made reasonable inquiry with the payee, all of the following:

The payee's name, address,
and age.

The payee's marital status,
and, if married or separated, the name of the payee's

spouse.

The names, ages, and place
or places of residence of the payee's minor children or other dependents,
if any.

The amounts and sources of
the payee's monthly income and financial resources and, if presently
married, the amounts and sources of the monthly income and financial
resources of the payee's spouse.

Whether the payee is
currently obligated under any child support or spousal support order, and,
if so, the names, addresses, and telephone numbers of any individual,
entity, or agency that is receiving child or spousal support from the
payee under that order or that has jurisdiction over the order or the
payments in question.

Information regarding previous transfers
or attempted transfers, as described in paragraph (11), (12), or (13) of
subdivision (b). The transferee or payee may choose to provide
this information by providing copies of pleadings, transaction documents,
or orders involving any previous attempted or completed transfer or by
providing the court a summary of available information regarding any
previous transfer or attempted transfer, such as the date of the transfer
or attempted transfer, the payments transferred or attempted to be
transferred by the payee in the earlier transaction, the amount of money
received by the payee in connection with the previous transaction, and
generally the payee's reasons for pursuing or completing a previous
transaction. The transferee's inability to provide the information
required by this paragraph shall not preclude the court from approving the
proposed transfer, if the court determines that the information is not
available to the transferee after the transferee has made a reasonable
effort to secure the information, including making an inquiry with the
payee.

(Ins. Code §
10139.5(c).)

IV.

Discussion

The verified Amended Petition states

Payee agrees to transfer the following payments to Petitioner: 1 payment of \$66,000.00 on January 28, 2027; 1 payment of \$66,000.00 on January 28, 2028; 1 payment of \$66,000.00 on January 28, 2029; 1 payment of \$66,000.00 on September 28, 2029; 1 payment of \$66,000.00 on January 28, 2030; and 1 payment of \$66,000.00 on January 28, 2031. (Amended Petition, ¶ 4.) The net amount paid to Payee would be \$290,000.00. (First Amended Petition, p. 4.) If approved, the Payee – who is 34 years old with one minor child and is currently unemployed – intends to use the money to have “financial means to pay overdue bills, purchase a vehicle and cover living expenses as will be set forth in the Declaration to be filed in this matter.” (Amended Petition, p. 4.)

However, Petitioner filed and served

Amended Exhibits on September 8, 2026, that significantly alters the Amended Petition. Indeed, the Amended Exhibits include a new agreement between Payee and Petitioner that provides for a new net payment amount of \$140,000 (see Amended Exhs., Exh. B) and a new transfer payment plan – “1 payment of \$43,800.00 on January 1, 2027 B) 1 payment of \$43,800.00 on January 1, 2028 C) 1 payment of \$43,800.00 on January 1, 2029 D) 1 payment of \$43,800.00 on January 1, 2030.” (See Amended Exhs., Exh. A, ¶ 2.) Thus, the Amended Petition is no longer accurate and up-to-date as to the arrangement between the parties.

Additionally, the Court notes the

Amended Petition states a Payee Declaration is “to be filed in this matter” (Amended Petition, p. 4) – however, no such Payee declaration has been filed.

Also, the Amended Petition states a

“copy of the annuity contract and a copy of any qualified assignment agreement” and a “copy of the underlying settlement agreement” will be supplemented as Exhibits C and D after Payee obtains the annuity documentation and settlement documentation (see Amended Petition, p. 5, fns. 1-2) – however, no exhibit C or D is provided in conjunction with the Amended Petition or Amended Exhibits.

Finally,

Petitioner filed and served the First Amended Petition and amended notice of hearing by mail at least 20 days prior to the instant hearing date; however, the Amended Exhibits, which significantly alter the Amended Petition, were not filed and served at least 20 days prior to the instant hearing. (Ins.

Code, §§ 1039.5, subd. (f)(2) ["Not less than 20 days prior to the scheduled hearing on any petition for approval of a transfer of structured settlement payment rights under this article, the transferee shall file with the court and serve on all interested parties a notice of the proposed transfer and the petition for its authorization"], 1039.2 ["Any notice required by this article shall be deemed to have been given if addressed to the recipient's last known address and deposited, first class postage paid, in the United States mail not less than five calendar days prior to the date on which notice is required"].)

Based on the foregoing, the Amended
Petition is CONTINUED to allow Petitioner to file a second amended petition that addresses all the deficiencies noted herein.

The Court notes that the second
amended petition should be inclusive of all referenced documents and up-to-date information regarding the subject transfer of payment rights between the parties. There should not be piecemeal filings regarding the second amended petition.

V.

Conclusion & Order

Petitioner J.G.

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At least 20 days
prior to the next scheduled hearing, Petitioner is to file and serve a second amended petition addressing the deficiencies noted herein.

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